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Author(s): Jan Kees van Donge

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UNDERSTANDING RURAL ZAMBIA TODAY: THE RELEVANCE OF THE RHODES-LIVINGSTONE INSTITUTE

Jan Kees van Donge

In the colonial period Zambia, then Northern Rhodesia, was a field for brilliant social research. The social scientists who worked at the Rhodes-Livingstone Institute (hereafter abbreviated to RLI) in Lusaka produced studies which can be found in libraries throughout the world. Yet the relevance of this literature for understanding present-day Zambia may not be immediately obvious. Our knowledge of society turns into historical knowledge, especially when great social changes such as decolonization take place. Social scientists inevitably capture one particular historical moment. The work of those connected with the RLI can therefore be treated as part of history; Kuper (1973) has characterised its role in the development of British anthropological thought as a part of the history of ideas, and Brown (1973, 1979) has written evocative accounts of the involvement of its members in the country as an example of the white man's presence in Africa.

My objective here is not an exhaustive review of either the total work of the RLI or its contribution to the development of anthropological thought. My approach is that of a political scientist who is interested in how the state affects the citizen in rural Zambia. I discovered how relevant the work of the RLI was to the understanding of contemporary Zambia through my own work in Mwasi Lundazi. It is not my intention to canonize the RLI scholars; certainly some of their work has dated, and some is much more relevant than others. Their work, like all work, is open to criticism and revaluation; Gluckman's, for example, has been justly criticized for idealizing Lozi society (Clarence-Smith, 1979). Here I merely intend to select parts of the corpus which are still necessary reading for an understanding of the present. I shall also be selective for heuristic reasons, to save the reader from being swamped by example piled on example. Also, although the *Journal* articles and Occasional Papers contain a wealth of information which would illustrate my argument, I will restrict references to the larger monographs. In passing, though not relevant to my theme here, it is worth noting that the RLI was among the pioneers of urban studies in Africa.

Above all, I want to show that the RLI literature really conveys how people in Central Africa live and feel about life, and I hope to convey some of the pleasure and inspiration that I derived from it as a reading experience. I do not doubt the usefulness of theoretical concerns, but discussions about the reproduction of labour in pre-capitalist formations, for example, can make us forget that actual sexuality is involved. It puts matters into proper perspective to read in Cunnison: 'Adultery, a youth told me, is the tea we drink' (1959: 92). People are depicted with weaknesses and longings, not as mere puppets in economic mechanisms. An example from Turner's work: '*Nkang'a* nights provide occasions for some of the worst quarrels I have seen among the Ndembu, especially between husbands and lovers of the women, who, stimulated by a day's singing of songs extolling sexuality and adultery, are extremely straightforward in luring sweethearts into the bush' (1968: 231).

After independence the RLI was renamed the Institute for African Studies of the University of Zambia. Many social scientists have worked in Zambia since independence, often affiliated to the Institute, and they have produced a considerable volume of work, but they rarely refer to the literature of the colonial period or expand the ideas of the RLI scholars.¹ This may be due partly to the latter having mainly been social anthropologists, while after independence more specialized disciplinary approaches predominated. Few post-independence studies pay detailed attention to kinship, which was a major concern in the literature of the colonial period, and new institutions have demanded attention, such as the political party and farming co-operatives. Yet social scientists tend to have ambitious goals and hope, in describing particular historical situations, to bring out enduring patterns of human behaviour. For instance, in his study of the Lakeside Tonga, Van Velsen aims to perceive the order in an apparently anarchic society, even concluding that 'through my study of Tonga politics I have gained greater understanding of such widely different phenomena as the acephalous United Nations Organization and small-scale, ephemeral pressure groups' (1964: 6). I cannot judge such universal generalisations. My contention is merely that if today's social scientists overcome their reluctance and go back to this older body of work they may find it remarkably relevant for understanding contemporary Zambian society. Although the fieldwork was done and written up in the colonial period, and Zambia has changed enormously since then, the fact that it was produced in that period does not in itself warrant the negative conclusions about it that have been drawn by so many.

For example, in a review of the urban studies of Mitchell and Epstein,² Magubane wrote, 'the major sociological contribution of the studies cited is their implicit consecration of the hegemony of white colonialists' (1971: 427) and Hooker (1963) had earlier argued, as a matter of course, that the end of colonialism invalidated the approaches of social anthropologists. Mafeje (1976) considered the work produced by people like Gluckman, Turner and Mitchell as a heritage of imperialism, albeit noting with appreciation that such bourgeois liberals had had the merit of training him. Cliffe's judgement is condescending: 'Valuable as this literature may be as a source, and however 'humane' the concern expressed, it was written from an essentially conservative perspective' (1978: 333). Van Binsbergen refers to their tribal model, in which African village life was depicted as closed and following a logic of its own, as a heritage from which the contemporary social scientist has to free himself (1981: 52-7). Kandawire (1977, 1980) found Mitchell's approach to life in southern Malawi wanting, as it was functionalist and did not pay proper attention to class formation.³

It is difficult to counter such sweeping and emotional criticisms, values and theoretical assumptions. Certainly there are valid areas for criticism, but debates on such issues run the danger of being more preoccupied with the minds of the academics than with the people studied. For example, when Magubane (1971) argues that an apparent preference for European clothes and a white skin by Copperbelt workers shows a false consciousness, he makes it clear that he does not appreciate such values, but the observation that these matters were important in social ranking is not thereby invalidated. Mitchell and Epstein may still, therefore, have provided valuable insights into urban society in colonial times.

I find it equally regrettable if the work of these social scientists is condemned in total because it can be labelled functionalist. It has been convincingly argued

that functionalism can be used to justify conservatism, if it explains all social phenomena as contributing to the maintenance of the system (Merton, 1949; Mills, 1959). Such criticism does not invalidate a concern for social integration; there is continuity as well as conflict in society. Colonialism was a racist system of rule, but one cannot deny that it was for a considerable time a remarkably stable social system. This is a legitimate area for investigation. I have not found arguments for racist supremacy in these works, nor, admittedly, do they provide an indictment of colonial rule. Van Teeffelen has pointed to their strict separation of values and science, for example, 'Gluckman as an objective observer had to make a diagnosis in spite of his own political wishes' (1978: 70-1). Clearly a functionalist position does not encourage active participation in the political conflicts of the day, but the concern of the RLI members was primarily to provide insights into society, and that they do. My reading of these works does not warrant the specific accusations of reaction which have been made. Others have come to similar conclusions. Kuper (1973) has pointed out that the members of the RLI drew attention to the way in which rural and urban sectors are part of one society and to their strong awareness of the colonial presence. Frankenberg (1978) has brought out the Marxist inspiration in Gluckman's work at a time when Marxism was not in vogue. There are several good reasons to recommend the work of the Institute at the present.

Firstly, its members did in fact write about just what they are supposed to have overlooked. Throughout their work they reason from the material base – how people make their living – in a historical perspective. Labour migration and the development of commodity production in peasant societies are dominant themes. The undermining of local economies by capitalist intrusion is widely documented. One can read about peasant initiatives in areas that have been simply labelled as labour reserves. All this should have been hailed by those critics who advocate Marxist analyses.

Secondly, a reading of their works draws attention to issues that have been overlooked since independence. There has been widespread insistence on the importance of class formation in rural Zambia. This is depicted in recent writing as merely the result of control over monetary resources and access to State support. Consequently control over essential means of production – labour and land – has not been given the attention it deserves. There are probably many market elements in the control over the factors of production in rural Zambia, but control over land and labour is expressed in the idiom of kinship. Entrepreneurs in areas such as rural Zambia act as brokers between different modes of production (Long, 1978). In Long's widely used and acclaimed *An Introduction to the Sociology of Rural Development* one can find many of the themes that characterize the RLI publications.

Thirdly, though independence has brought major changes in the administration of law and order, about which at the national level we have much data and comment, we must still pay attention to local legal systems if we want to understand capital accumulation and the role of the state in rural Zambia. There has been ample attention to resource allocation through the development efforts of the state. The RLI publications pay attention to the 'law and order' functions of the state. This bias is partly because there were few development efforts at that time. But, and more important, they also pay attention to the importance of kinship. If one accepts that kinship remains important in allocating land and labour,

then the joint study of kinship and law, as pointed out in RLI publications, still remains valuable.

WHAT WAS NEW UNDER THE SUN?

During the last decade or so varieties of neo-Marxism have come to dominate attempts to understand developments in rural Africa. A holistic approach, mostly referred to as political economy, has been regarded as essential; analyses should start from an account of the material base and the influence of the world-wide capitalist system should be a central concern. In Zambia, it has been held, analysis should not proceed as if its people lived in tribal societies in which kinship still had a dominating influence. The workings of world markets and state power that support the dominant classes are held to be the main explanatory factors – although recently this model has been refined and more attention has been paid to initiatives from below in response to capitalist penetration. It has been noted that peasants have tried to capture the opportunities for commodity production even while state powers have striven to coerce them into wage labour; that peasants have resisted capitalist intrusion by withdrawing from state influence (Arrighi and Saul, 1974; Oxaal *et al.*, 1975; Palmer and Parsons, 1977; Hyden, 1980).

Anyone who starts from such assumptions must be struck by a shock of recognition when he reads the RLI's monographs. The material base is the methodological starting point for them all, and they all begin with an historical overview, a description of the local agricultural system, and a consideration of how labour production and commodity production (cash crops) for the market have affected the lives of the people. This is particularly striking in Turner's analysis: before he starts to deal with the superstructure of Ndembu society, such as rituals of affliction, he describes the division of labour between men and women. Hunting is the prime male occupation, while the women tend cassava gardens. Hunting plays a major role in the symbolism employed in the rituals, and he draws a major distinction between the blood of animals (male) and the blood of motherhood or procreation (female). His analysis of a performance of the hunters' *Ihamba* ritual brings together this dichotomy with the tensions aroused by changes brought about by the involvement with the wider economy. The main protagonist in that ritual is Kamahasanyi. He 'appeared to have passive homosexual tendencies, which suggested that there may be a conflict between masculine and feminine strivings in his unconscious psyche, [so] it is not perhaps too surprising that he had undergone several performances of *Ihamba*, a ritual which might be considered to provide masochistic gratification, and to imitate in its emissions of blood, agonized writhings, and final expulsion of an object from within the body, certain of the features of parturition' (Turner, 1968: 192). Turner attributes the importance attached to the ritual to the strivings of the community to remain integrated in the face of a decline caused by successful adaptation to the opportunities of the modern cash economy. The real causes of the problems in the village were beyond the control of the villagers and the rituals are, essentially, a regressive mechanism to cope with failure in the modern world. Any neo-Marxist reader should be pleased with an analysis of a religious phenomenon which is thus rooted in the development of the means of production!

Frank's (1972) notion of the development of underdevelopment has been per-

vative throughout the wave of neo-Marxist writing; according to it, local economies are undermined by a drain of labour power in the interests of world-wide capitalism, which has stunted their progress. Gluckman's work is permeated with a similar idea. In *The Economy of the Central Barotse Plain* (1941) he describes how the natural environment provided work and food the whole year round. He quotes Livingstone's description of a rich and fertile valley and deplores its impoverishment. He attributes the valley's decline to a shortage of labour, which makes it impossible to maintain the drainage systems in the plain, and the fact that it is too far away from markets to benefit from cash cropping. The idea of a society which was in equilibrium before colonization, and is destroyed by the intrusion of capitalism and imperialism, is central. The administrative problems of the Barotse nation under colonialism, he explains, arose from the abolition of tribute, so that food storehouses lost their importance and those in charge became a parasitic group of people (Gluckman, 1943). The introduction of territorial divisions of administration, instead of the old sector system which covered the whole Barotse nation, he sees as a prime cause of the break-away of groups which the Lozi had incorporated in their dominion (Gluckman, 1951). Theft, as such, was rare among the Lozi, according to him, but there were conflicts between kin over property:

If theft were common, it seems difficult to understand another law of King Mulambwa [ninth king: 1780?–1830?] as reported by Jalla: 'As regards theft the king said: "A thief is a brave man and must therefore not be put to death but must be brought to the king, who will give him a village or cattle and have him his tribute collector. People will then see if he will thief again or become a good citizen." ' [Gluckman, 1967: 106]

Gluckman has been criticized for idealizing Lozi society (Colson, 1978; Clarence-Smith, 1979), but, if so, he could be equally praised as a herald of those neo-Marxist ideas which have obtained such widespread recognition. No doubt he underrates class differences in Barotseland, but he certainly documents the inequalities which existed. For example:

He upbraided the litigants harshly, asking them how they could quarrel over unused land, when many people were hungry for land. He warned them that he would report this to the *Kuta* which would take the land from them and give it to landless people. (The *Kuta* has in fact no power to do this: but the Lozi look so askance at people who hold unused land where land is wanted, that it would have been difficult for the litigants to refuse a request from the king for the land.) [1967: 71]

This incident fits remarkably well with a common idea in neo-Marxist thinking about the autonomy of the state, which explains the role of the state as dampening class conflicts which would endanger the stability of exploitative systems (e.g. Saul, 1974).

'MANCHESTER' ORTHODOXIES?

Gluckman was the dominant figure in the 'Manchester school' but it would be a mistake to generalize from his writing to the whole group of RLI scholars. The idea that colonialism was the disturbing factor in societies previously in equilibrium is not found in the other monographs.

Colson (1951) describes the Plateau Tonga on the eve of colonization as a 'broken and beaten people', devastated by the raids of Kololo, Lozi and Ndebele

as well as by internal strife. They were lucky to have been out of the way of the Arab slave routes. Yet in the 1940s, when she started working there, the Tonga had a booming peasant economy. They had moved, probably in the late 1920s, into cash cropping. Labour migration was a way for young people to prove themselves independent and to get to know the world. It was not an area undermined by labour migration – indeed, it imported labour. ‘With the development of cash crop farming, widespread differentiation in income and assets have begun to appear among them’ (Colson, 1958: 66).

Barnes describes the pre-colonial economy of the Ngoni as parasitic, dependent upon raiding for cattle and dependants. They consumed cattle faster than they reared them. The decline of their economy cannot be explained as a consequence of land alienation alone. Their prosperity had depended on raiding cattle as well as on crops and on moving on when the land was exhausted. The survival of the Ngoni state was secured by colonial administration: ‘it was concerned with preserving order in the country as cheaply as possible and did not wish to introduce economic and political changes which would conflict with the supply of labour to other areas scheduled for earlier development’ (Barnes, 1954: 135).

In the Luapula valley Cunnison (1959) found a society which had built a booming economy upon fish trade with the mining centres. The area had attracted large numbers of immigrants because of its prosperity. He analyses the particular nature of the society as a consequence of coping with this immigration. Mitchell’s study of the Yao shows a society which had been dependent upon slavery to build up its political structure, but had adapted remarkably well to changing circumstances. Labour migration was common in the area, but Yao relied mainly on the sale of agricultural produce – especially tobacco – to supply their cash needs. It was the chiefs who had suffered decline: ‘A chief with whom I was once discussing slavery expressed neatly the attitude of the Yao chiefs to their subjugation. He said: “there is no slavery – today we are the slaves of the government”’ (Mitchell, 1956: 38).

The works of Watson, Van Velsen and Long deal explicitly with the effects of labour migration and the emergence of prosperous farmers in ‘tribal’ societies. They describe the conflict of townsmen versus tribesmen or, more fashionably, proletarian versus peasant. Watson, in his study of the Mambwe, argues that labour migration is actually supported by the peasant economy. ‘The profit of wage labour is underwritten by the subsistence economy’ (1958: 34). Wage labour had not led to a decline of the local economy. In the Mambwe system of agriculture, female labour could replace the labour power of the absent men. In Van Velsen’s description of the Lakeside Tonga the maintenance of ties with the home village among labour migrants is a persistent theme. The strategies developed to establish a hamlet with a sufficiently large population are interpreted in this light. For example, ‘Tonga labour migrants try to organize their trips abroad so that there will always be at least one man left per hamlet, who is expected to represent in public the interests of the hamlet. Moreover a man is more likely to get fish . . .’ (Van Velsen, 1964: 71). Long’s study of Jehovah’s Witnesses in Serenje has as a central focus the organization of a labour force to manage a farm with ox-drawn ploughs, and shows how the emergence of the Jehovah’s Witnesses was indirectly concerned with the rise of a cropping economy. The Church offers alternative bonds of solidarity for emergent farmers who fear the jealousy of kinsmen, or that generated between wives (Long, 1968).

There seems to me little ground for Cliffe's judgement that 'The tendency to ignore these emerging capitalist-influenced relationships is paralleled by and perhaps a result of a similar playing down of indigenous class or strata differences' (1978: 335). The RLI literature deals precisely with such matters, and demonstrates that there is much more ambiguity in development than a mere decline of local economies through capitalist intrusion backed up by state power, and, also, that it is a gross oversimplification merely to designate rural Central Africa as a labour reserve for the mining economy of southern Africa. The empiricism of the RLI shows a range of ambiguous responses to social change under colonialism which both necessitate a modification of our theoretical constructs and provide new insights. While reading this literature one is reminded of the perceptive criticisms of Long and Ranger of the wave of neo-Marxist writing. Long (1977), while sympathetic with dependency theory, stresses the metropolitan assumptions behind it. In a review of the literature on peasant initiative under colonialism, Ranger (1978) stresses that Africans should be seen as actors who are involved in the making of their own history, and not just passive figures whose actions are determined by the workings of unambiguous economic mechanisms. Cooper (1981) has similarly doubted the linearity implicit in most development theory. Since independence Zambia has known both dramatic breakdowns of agricultural production and boom times. We know little about these swings or about how booms took off, were sustained or collapsed. A close reading of the RLI monographs is very suggestive of approaches to the analysis of these slumps and booms.

KINSHIP AND CLASS FORMATION

'Articulation of modes of production' is an expression that abounds in the development literature these days, particularly with reference to situations in which pre-capitalist social formations are seen as an essential part of a dominant capitalist system. This is so for Central Africa, as they contribute to the security of the labour force in old age, infirmity, etc., and to a considerable extent bear the costs of reproduction of the labour force. A certain idealization of life outside the capitalist centres is often implicit, e.g. 'kin-based claims of assistance, through which people peripherally participating in a capitalist order seek shelter' (van Binsbergen, 1981: 79). The RLI publications suggest that such idyllic kinship solidarity was never such a simple fact, and demonstrate the interlocking nature of kinship and cash. In a world where cash is crucial, 'kinship' in itself does not necessarily create solidarity bonds. Indeed, it is shown that appeals to kinship can be competitive, because of the widespread desire of men to gain prestige by creating a following of dependent kin.

Poverty and destitution are recurrent themes in all the major monographs. Colson's study of the constant threat of famine to the Gwembe Tonga is probably the most moving: 'when local supplies are exhausted, people walk many miles to tap the resources of kinsmen living at a distance. Often they go to the Plateau, where their appearance is looked upon with much the same enthusiasm as the settling of a swarm of locusts' (Colson, 1960: 56). This response is not that which is popularly supposed of organic solidarities based on kinship. A major extended case in Van Velsen's *The Politics of Kinship*, that of Meya's death, deals with marital and cross-cousin relationships in action. Here one is confronted

as much with worries about food supply in an area where labour migration is dominant as with kinship. The marriage of the main protagonists was inspired by a desire to insure against famine, as the man's sons had all gone abroad. The wife protests that she has been 'sold for fish'. In the study kinship is interpreted as a ploy to insure against standing alone in the world, a situation equated with slavery, in the context of labour migration (Van Velsen, 1964).

Watson's study of the Mambwe is a classic description of the supportive effects of rural kin based economies for wage labour. Yet this is tempered by the sad account of Peter Sinyangwe's situation:

After this marriage, he had enough money to get down to the Copperbelt, where he quickly found a job and sent for his wife. He was discharged from his job soon after he arrived, and found difficulty in finding another job, so his wife returned to the village. Peter then fell ill, and for a time was kept by some relatives already working in Mufulira. These people got tired of keeping him, but he could not come home . . . especially as he had no money for his fare and owed obligations for this marriage cattle to Elliam. Ultimately, Elliam relented and helped him, but his failure had upset expectations. [Watson, 1958: 119-20]

If one is down and out the kinship system is less supportive than when one is successful, even though fears of witchcraft and sorcery remain a threat to the stingy. The RLI monographs abound with insights into the complexities and ambiguities in family and kinship relationships. For example, an outstanding example from the many poignant accounts of the barren and the infertile is Turner's story of the capable Sandombu, whose economic and personal life was made miserable by his sterility (Turner, 1957). Similarly sexual failure correlates with political failure in this account by Harries-Jones and Chiwale (1963):

Following the death of *Folotiya*, the headmanship correctly passed to *Folotiya*'s brother, *Sakeni*. Unfortunately for the latter, he has been physically unable to perform the sexual rite of 'cleansing the widow' and hence to inherit properly his deceased brother's wife.

The RLI literature shows that the rules of kinship are ambiguous and that men could manipulate them to obtain access to land and labour, and to muster a following. Rural society is depicted, at the level of the work group and the family, as adaptable to conflict and dispute and much more varied than recent analyses suggest. The way in which contradictory principles are used to justify claims of allegiance are central to Turner's classic study (1957) of the way in which matrilineal descent strains against the practice of virilocal residence. Comparable contradictions are a main theme in Van Velsen's *Politics of Kinship*, in which the rule that if you retain the widow you retain the children conflicts with the rule that children are free to choose which of their kin they wish to live with. Kinship is shown to be an idiom in which people talk about their situation in life and their aspirations. Throughout the RLI writings attention is continuously paid to behaviour which deviates from kin norms as well as to that which follows them. The important role of putative kinship is also brought out. An example may be taken from Colson:

Chepa is the wealthiest person in the vicinity; it therefore pays for outsiders to be incorporated in his group . . . He does this by converting them into kinsmen . . . If he should die, of course, these people (his own matrilineal group) might question the status of the group and repudiate the outsiders who have been incorporated into it. They may find this difficult to do since *Chepa* has taken a share of the bridewealth of the women belonging to the outsiders. [1951: 142]

Similarly where kinship is inadequate people seek alternative links. Long (1968) shows how in Serenje entrepreneurs seek to build up a labour force independent of their kinsmen by using links within their congregation of Jehovah's Witnesses.

The end of colonialism did not abolish kinship as a factor in daily life in rural Zambia, but it gets scant attention in the current literature. There the main concern is with class formation, so that wealth and access to resources such as state services are seen as the measure as well as the major cause of inequality (e.g. Marter and Honeybone, 1975; Cliffe, 1978; Bratton, 1980; Bwalya, 1980). The pre-capitalist social formations, however, continue to be essential for access to vital inputs for capital accumulation through farmland and labour. The work produced at the RLI continues, therefore, to be relevant to the study of rural life. If we want to understand the interactions involved in class formation, we should pay attention to marriage patterns, kinship strategies in gathering dependants, and the way in which claims are made on land. The focus nowadays is often at too general a level; broad categories such as peasants, women or pre-capitalist social formations are used. Analyses at a general level do not provide insight into how people actually make their living. Long's (1976) plea for a focus on the entrepreneur in developing countries as a broker between modes of production is therefore very much to the point. I do not doubt that the workings of wide-ranging economic mechanisms are important, but if we want to understand the material base of life in rural Zambia, then attention must be given to the daily working of kinship principles.

The RLI authors also clearly established that migration has been a traditional, as well as contemporary, aspect of life in rural Central Africa. They did not, as is so often suggested, simply isolate 'tribes', each with clear boundaries and its own laws and customs. Migrants, as Gluckman (1941) stressed, were continuously absorbed into the Barotse Plain. A major theme in Barnes's study (1954) of the aptly named Ngoni 'Snowball State' was the state's capacity to absorb conquered peoples. Turner refers to the relationship between the aboriginal Mbwele and the Lunda invaders throughout his work. Van Velsen (1964: 47) describes the Lakeside Tonga, among whom 'structural amnesia' was a feature of life, as an amalgamation of various tribal offshoots each of slight genealogical depth. Colson wrote, 'In a sense it is probably false to regard the Tonga as a definite group or real unit which is set off by definite criteria from other people' (1951: 59). Continuing migration was a dominant feature of the life of the people of the Luapula valley, as described by Cunnison, and peoples retained the tribal designations which they brought in with them. Recalling history was a popular pastime, and though the 'past lives in the present and people see the past and justify the present situation by it' . . . 'boundaries are not as clear as they once were . . . histories and myth . . . exaggerate them' (1959: 232, 243). Tradition and kinship are therefore mental constructs in the minds of the actors and not the genealogical and historical realities that the observer notes.

DECOLONIZATION AND THE COURTS

My appreciation of the RLI literature is not based only on its use as illuminating background reading. Its contemporary relevance became especially clear to me while I was doing research into the interaction of the citizen with the state in Mwase Lundazi in the Eastern Province of Zambia in 1977-78. I started out

with the common ideas on the emergence of a class of so-called 'kulaks' who monopolize political positions and build up their farming enterprises with government resources obtained through alliances with civil servants. This soon appeared to be a simplification. Politicians did not automatically become big farmers; most big farmers were not interested in politics, and there were as many antagonistic relationships between farmers and civil servants as there were indifferent or co-operative ones (Van Donge, 1982). The role of the state appeared to be far less important in managing a farming enterprise than the 'kulak' proposition suggests. The major preoccupations of farmers were with land and labour. In Zambia farmers need much labour during the short period when the rains have started in order to plough and to plant. The whole society is then under pressure for labour, and it requires skill to form a reliable labour force. In Mwase Lundazi land was not scarce in an absolute sense, but it was hard to get land that could be farmed without artificial fertilizers. Expanding farmers were blocked by other people's land and there was a rush to claim more land than could be cultivated immediately as an investment for the future. All the important farmers were enmeshed in disputes about land. I came to realize that life in Mwase Lundazi was not so much shaped by 'development policies' and their intended and unintended consequences as by arbitration sessions, which were chaired by the chief, in which land and headmanships were discussed and by local court sittings which mostly dealt with disputes between co-wives.

Long's work (1968), which details how polygyny is utilized to acquire a farm work force, was immediately relevant for me. Issues relating to succession to village headships dominated the chief's arbitration sessions. Headmen and chiefs are in charge of allocating land, and these conflicts therefore had a major economic importance. Contradictory claims were based on different principles of succession.

Van Velsen's (1964) description of the indeterminacy of kinship relations proved enlightening. I discovered that any social scientist who wants to understand unequal access to land and labour must pay attention to the way in which kinship relations are operated. I soon realized that the judicial processes governing conflicts on those issues also needed to be analysed. A focus on the law-and-order functions of the state appeared highly relevant.

The monographs of the RLI constantly refer to the role of the courts. Under colonial rule 'native courts', based on supposedly traditional authority, interpreted the kinship principles in operation; the colonial rules therefore sought to codify the principles of kinship. Attention to the way the colonial situation influenced rural society, which I have documented above, also led logically to attention to the courts. The system of indirect rule led courts to work more as part of a system of law-making than as courts of law-finding. This has been best illustrated in a recent article by Elizabeth Colson in honour of Max Gluckman. She describes how among the Tonga indirect rule meant the introduction of a totally new legal system: even the judges had to be imported from Barotseland. She suggests that Gluckman's most valuable contribution was that:

He stressed that the courts could not be understood divorced from the society that created them and of which they formed a part. He urged that one must examine how the courts expressed and acted upon the kinds of interest held by those the courts served, both those over whom the court had jurisdiction and those dominant in the larger political and economic universes to which the local people ultimately related. [1976: 16-17]

Independence has brought major changes in this field, because it is the courts which set the parameters in which social action takes place, and the constitutions and personnel of courts have been changed. Indirect rule, whose role in integrating the rural societies into the capitalist order of southern Africa was so fully documented by the RLI, was abolished. Chiefs lost their judicial powers and a system of independent local courts was established. Chiefs retained a government salary and the status of government official, but lost all their formal powers; unofficially they remained important arbitrators in the vital areas of land and headmanship. Since the early 1970s they have also been important witnesses in the process of national registration. Powers in the local arena have also been demanded by the ruling political party. For instance, in Luapula the party regulated the fish trade and beer brewing (Poewe, 1979). The police force superseded the chief's messengers as prosecuting agents. The legal arena thus became fragmented; there were numerous institutions at the local level based on different principles of legitimacy. Among the questions that arise are: how do these institutions relate to each other, which institutions make the more enforceable decisions, and how do these relate to the various interests in the community? The principles urged by Gluckman still hold.

Some recent studies have followed in the footsteps of the old RLI literature. Lancaster (a pupil of Colson's) has studied the Gwembe Tonga; Pottier has restudied the Mambwe, using Watson's study as a baseline; in her study of the Luapula, Poewe 'attempted to cover the area researched by Cunnison in 1949' (Lancaster, 1966; Pottier, 1980, 1983; Poewe, 1978: 205). All these studies contain many illuminating observations but they do not pursue the key questions, raised by Gluckman and his colleagues, as to where the authority for rule-making resides.

Poewe's main thesis is that there is a tension between matrilineal practices and the desire to accumulate capital. According to her, in Luapula society there is a distinct difference in the opportunities for capital accumulation open to men as compared with those open to women, which stems from the matrilineal 'ideology'. Women have control over land; men do not have such control. 'Land, certainly village land, is to all intents and purposes held and worked by women' (Poewe, 1978: 217). Therefore capital accumulation for women starts in agriculture: 'Women participate in an investment chain which leads from cassava-growing and the sale and rental of cassava ridges to . . . more substantial business enterprises' (Poewe, 1978: 357). Her case material deals with remittances from offspring, brewing and fishing, and she does not go into detail about how land is allocated. Nor does she refer in connection with land to Cunnison's chapter on that issue. Cunnison wrote, 'the chief controls and allocates land. . . . A man does not need to adhere to a kinship group before he can find land to cultivate; he only needs to be registered with a chief' (1959). There seems to be a discrepancy between Poewe's observations of female control over land and Cunnison's explicit reference to males in land allocation. There may have been a change during the period between the two studies, but, if so, it is a pity that she does not refer to Cunnison's observations on this topic, nor endeavour to explain where there has been a change. Poewe does not discuss political control over land allocation, which, it seems reasonable to assume, should be important for the understanding of capital accumulation.

A number of observations have been recorded on these matters. These are not

always clear, nor are they without ambiguity. Canter observed in Mungule in the Central Province that the various authorities back each other in their decisions, because government, chiefs, headmen and family authorities need each other to maintain their influence (1978: 255). Other observers have not recorded any such interlocking of authority. Bratton, in his study of Village Productivity Committees and Ward Development Committees in Kasama, mentions that village headmen and chiefs continue to have a judicial role and, in practice, usurped legal powers. One chief tried unsuccessfully to imprison a subject. Chiefs imposed fines in cases of adultery and in criminal cases such as stock theft. In law this is completely outside their jurisdiction, so one wonders how they legitimate such decisions in the community. Bratton is mainly concerned with class formation but, regrettably, he does not relate his observations to unequal access to land and labour (1980: 221–2). Bates also describes headmen who encroach in the legal arena in Kasumpa village in Luapula: 'Fines and jail sentences rather than reconciliations resulted from [headman] Kabeya's adjudications' (1976: 260). This again is a puzzling statement. Adjudication is formally outside the power of headmen. A community may accept the imposition of fines, but police and the prison service need to be involved in order to jail somebody. How is that possible, if such sentences are outside the powers of headmen? Bates records conflicts between the various legal arenas, between chiefs and headmen on the one hand, and the party on the other, and how supernatural sanctions are invoked to deal with the conflict.

In Mwase Lundazi I, too, found a fragmented legal arena. People shifted disputes from chief's arbitration to local courts, to State prosecuting agents. They resorted also to informal sanctions, like sending cattle through or setting fire to crops just before the harvest. Mwase Lundazi was originally a Chewa chieftainship with matrilineal descent. There was, however, a long tradition of immigration by Ngoni and Tumbuka peoples, who introduced patrilineal practices in which bridewealth, paid in cattle, was central. Norms based on kinship were enmeshed with commercial criteria. Some big farms were lying fallow because of disputes between kin who had started the enterprise together. One small farmer whose land blocked access to a big farm was given fertilizer by the big man as an inducement to move; the small farmer accepted the fertilizer but refused to move. It was held that accepting the material inducement was not binding on the small farmer, as land was allocated by the headman. Capitalism in the ideal-typical sense where human behaviour is regulated through private property, wage labour and market transactions is rarely found. An intermediate situation is more typical in which monetary rewards play a role in transactions but are interwoven with norms based on the small group to which one belongs and on kinship. Such transactions were mostly indicated as 'helping' (*kuthandiza*). The legal environment has changed since independence, but there is as much reason as ever to maintain the perspectives on this changed empirical reality that are found in the work of the RLI. Unfortunately I discovered these important insights too late in my stay in Zambia, and hence did not manage to collect extended case studies. The following case may, however, illustrate the sorts of question that may be asked.

THE CASE OF THE LETTER TO IMMIGRATION

Mundende vilage is situated right on the border between Malawi and Zambia. The headman, Mundende G., had been the head messenger in Lundazi Boma

and a big man in colonial days. His father-in-law, Z., who had been a councillor since 1943 at the court of the Ngoni chief Mbelwa in Malawi, moved into Mundende's village in 1961. He made it clear that it was his intention to stay there by depositing some money in Mundende's care. Z. died shortly afterwards, and his son Chiole moved away to found a new village of his own. Chiole died in 1976 and was succeeded by B., a son of his youngest uterine sister. B. resided in the area of Chief Mphambe, to the west of Lundazi Boma and outside the chieftainship of Mwase Lundazi. This succession was disputed by a son of the late Chiole, who claimed that B. had only been a caretaker. This dispute came to a dramatic head when B. wrote a letter to the Immigration Department, in which he claimed that the Z. family were all Malawians and should therefore be deported. All Z.'s family, even those away in town, were requested to come to the Immigration Department. Their identity cards were held and an inquiry into their status as Zambian citizens was initiated. In the end it was established that they were all indeed Zambians.

As a consequence of this row Chief Mwase Lundazi was called on to depose B. as headman. Many people came to the hearing, including all Z.'s family, who lived on the Copperbelt, and the other headmen who had formerly lived with Mundende. Mundende, acting as their spokesman, stressed how B. had visited all the past and present party activists in the area in order to rally them to his side, implying thereby that his traditional claims were slight. B., however, claimed that according to Chewa rules – Mwase being a Chewa chiefship – he was the true successor as the only son of the uterine sisters of the last headman. Mundende countered that nowadays it did not matter if you were Chewa, Ngoni or Tumbuka because it was the Bible (i.e. one's membership of the human race) which counted most. B. was deposed and went to live in Matavu village near by. The claim to the headmanship based on kinship directly threatened the livelihoods of some, in that if deported they would have lost their jobs. Moreover a headman has power and influence as witness and arbitrator in land disputes. In this area land is short, and if B. had succeeded in getting the family of Z. deported he could have gained control over the disposal of the land they vacated.

This short case indicates how disputants utilize whatever legal resources are to hand – arbitration by the chief, political party influence, the new laws of the State, or whatsoever. In Mwase Lundazi chiefship is a strong institution, and the chief has charisma as an innovator and respect as an administrator. But he has to rely mainly on informal means to establish his authority. One can imagine the risks people can run in cases like this where the chief is weak. If it is true, as it appears, that many people in rural Zambia live in an insecure legal environment in which there are competitive areas of jurisdiction, investigations of dispute settlements should throw light on the process of class formation. It may well be that privilege is far less entrenched than attention merely to the control over capital would suggest. A rural entrepreneur, it seems, has to establish legitimate moral claims to both land and labour, not simply assert them. Long's study of Jehovah's Witnesses in Serenje (1968), which was the last major RLI study, argued that this was so. It is an insight which, even with the new focus on capital and the state, we cannot afford to neglect in the study of contemporary rural Zambia.

NOTES

¹ The pre-independence literature was seldom recommended reading at the University of Zambia in the 1970s. The end of colonization seems almost to have been a point of discontinuity in the study of Zambian societies.

² Mitchell's *The Kalela Dance* has two main themes. One is that 'tribalism' in urban situations should not be confused with a 'tribal' rural setting. This observation is still highly relevant while judging 'tribal' alliances in present-day African politics. The other is that the dance shows how the Europeans act as a reference group. He states in his analysis, 'what on the surface may appear to be opposition between "classes" in the prestige system may in fact be aspects of the general opposition between Whites and Blacks' (Mitchell, 1956: 16). Such a remark cannot be considered in any way as an apology for colonialism. Epstein's work in Luanshya described the politics of the town through changes in the social composition of the mining towns and changes in corresponding administrative arrangements. Colonial rule/administration is therefore the central concern of his study. One of its major themes is the tension between nationalism and trade unionism. Conflicts between these two movements are still a recurrent phenomenon in the politics of independent Zambia. The most serious in recent years concerned a reorganization of local government. This is, at first sight, an issue outside the scope of trade unionism. Epstein's (1958) analysis may therefore still be relevant today.

³ Kandawire's polemic with Mitchell resembles shadow-boxing. In his work Kandawire elaborates themes mentioned by Mitchell, e.g. land shortage and domestic slavery. He accuses Mitchell of a functionalism which does not pay attention to class conflict. Mitchell's monograph, however, documents numerous conflicts. He brings out how colonization meant a decline in slavery, and how this led to a decline in influence of the chiefs and how – as quoted above – this leads to new antagonistic relationships. Kandawire states, 'The coming of colonial rule did not abolish slavery at one stroke, as Mitchell would like us to believe' (1980: 142). I do not think that this conclusion can be drawn. For example, 'The grandchild – grandparent relationship became fused with the master – slave relationship as the term *ambuje* for master suggests' (Mitchell, 1956: 196). Slavery was hidden from the outside world by the use of euphemisms. Attention to class conflict should not blind us to the integrative processes that are also to be found in society. Thus: 'Most sons of the early chiefs were their children by slave-wives' . . . They were not – as his younger brothers and his sister's sons were – a danger to him, because they were not in line of succession and had no reason to wish his death. The chief's sons, the *Acibwana*, therefore came to occupy the most trusted positions under him (Mitchell, 1956: 69).

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Résumé

Compréhension de la Zambie rurale contemporaine: la pertinence du Rhodes-Livingstone Institute

Cet article démontre que la littérature produite à l'époque coloniale par le Rhodes-Livingstone Institute est pertinente à la compréhension de la Zambie rurale de nos jours. Il démontre que les travaux de l'Institut mettent en rapport la vie sociale avec le système économique et que sa connaissance est primordiale à toute personne intéressée par une

analyse néo-marxiste de la région. Contrastant avec plusieurs analyses récentes, ses travaux indiquent une variété de réponses à la pénétration du capitalisme au lieu d'adopter un déterminisme rigide. Une telle perspective peut être utile pour interpréter les différents efforts dans la commodité de production qui ont eu lieu en Zambie rurale. Il serait erroné de ne considérer cette région que comme une simple réserve de main-d'œuvre. Une lecture de cette littérature est importante pour comprendre la formation des classes en Zambie rurale. L'influence des formations sociales pré-capitalistes a été traitée de façon trop superficielle. La sécurité du système de parenté a été romancée, et le contrôle sur les rendements essentiels du fermage, de la main d'oeuvre et de la terre ne peuvent être compris qu'à la lueur d'une référence à la parenté. Dans cette littérature la parenté est soulignée comme étant un ensemble très flexible de critères et non pas comme un système de village fermé non troublé par le changement social. Dans cette littérature la Zambie rurale est décrite comme étant intégrée dans l'état colonial au travers d'un rapport artificiel au code traditionnel. La situation a changé depuis l'indépendance. Il est nécessaire de considérer ces changements dans le domaine légal. Les perspectives du Rhodes-Livingstone Institute devraient être appliquées pour comprendre l'indétermination des normes légales et la fragmentation des arènes légales dans la Zambie rurale contemporaine. Cette thèse est illustrée par certains aperçus acquis au cours de recherches à Mwase Lundazi dans la Province de l'Est en 1977-78.